

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 01/27/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-00256
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS.
CALICARCOMOBILE.COM LLC
*HEARING ON MOTION FOR DISCOVERY DEEM REQUESTS FOR ADMISSIONS ADMITTED
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
TENTATIVE RULING:

Background

Plaintiff filed, on September 24, 2025, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff also sought fees in the amount of \$400, for attorney's fees (2 hours at \$200/hr), and \$60 for filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

Counsel for Defendant, Sonia Arata, withdrew from the case on October 28, 2025.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff to draw and file Order.

**2. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JPMORGAN CHASE BANK, N.A.
*TENTATIVE RULING:***

Background

Plaintiff has filed, on November 6, 2025, a Motion to Enter Judgment pursuant to a Stipulation under Section 664.6 of the Code of Civil Procedure.

The Stipulation was attached to the Motion, and was also independently filed on November 6, 2025. It was executed by both parties on November 6, 2024.

Analysis

Plaintiff filed a proof of service for the service of the Motion, however, service was effected by mail on an attorney, the Kazerouni Law Group, with a mailing address in Las Vegas, Nevada.

This court has taken judicial notice of the file in this matter, and notices that there is no record of any